

SENATE BILL 1408

By Hensley

AN ACT to amend Tennessee Code Annotated, Section 55-8-199, relative to use of a wireless telecommunications device while operating a motor vehicle.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 55-8-199(b)(1)(A), is amended by deleting the language "Physically hold or support, with any part of the person's body," and substituting instead the language "In a work zone when employees of the department of transportation or construction workers are present or in a marked school zone when a warning flasher or flashers are in operation, physically hold or support, with any part of the person's body,".

SECTION 2. Tennessee Code Annotated, Section 55-8-199(c)(1), is amended by deleting the subdivision and substituting instead:

(1)

(A) A violation of subdivision (b)(1)(A) is a Class C misdemeanor, subject only to imposition of a fine of two hundred dollars (\$200).

(B) A violation of subdivisions (b)(1)(B)–(b)(1)(E) is a Class C misdemeanor, subject only to imposition of a fine not to exceed fifty dollars (\$50.00). However, if the violation is the person's third or subsequent offense or if the violation results in an accident, the fine is one hundred dollars (\$100); or if the violation occurs in a work zone when employees of the department of transportation or construction workers are present or in a marked school zone

when a warning flasher or flashers are in operation, the fine is two hundred dollars (\$200).

(C) Any person violating this section is subject to the imposition of court costs not to exceed ten dollars (\$10.00), including, but not limited to, any statutory fees of officers. State and local litigation taxes are not applicable to a case prosecuted under this section.

SECTION 3. This act takes effect July 1, 2025, the public welfare requiring it.